

OFFICE OF THE SECRETARY

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November 18, 2020

The Honorable Joan Comparet-Cassani
Judge of the Superior Court
County of Los Angeles
275 Magnolia Avenue
Long Beach, CA 90802

Re: David Wayne Moreland
CDCR No: P14315
Case No: NA045898
Date of Sentence: May 8, 2002

Dear Honorable Joan Comparet-Cassani:

The purpose of this letter is to provide the court with the authority to resentence inmate David W. Moreland pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Moreland has remained disciplinary free since being received to CDCR on April 11, 2001. Inmate Moreland is currently assigned as a Dining Room Worker and his supervisor notes that he does everything that is asked of him and his most recent evaluation included exceptional marks in all reviewable categories. Inmate Moreland also participates in biblical seminars and has a history of participation in the self-help groups, Alcoholics Anonymous and Narcotics Anonymous. Moreland has received numerous certificates and laudatory chronos from these group sponsors acknowledging his commitment and dedication to these self-awareness and improvement groups.

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Having reviewed the enclosed documentation it appears that inmate Moreland's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


KATHLEEN ALLISON
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office